

STATE OF NEW YORK

3899--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 30, 2025

Introduced by M. of A. ALVAREZ, O'PHARROW, COLTON -- read once and referred to the Committee on Children and Families -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the social services law, in relation to inspections of child day care homes, programs and facilities, and opioid overdose prevention

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subparagraph (iv) of paragraph (d) of subdivision 2, para-
2 graph (a) of subdivision 2-a, subparagraph (i) of paragraph (c) of
3 subdivision 3, subdivision 6 and paragraph (a) of subdivision 7 of
4 section 390 of the social services law, subparagraph (iv) of paragraph
5 (d) of subdivision 2 and subdivision 6 as added by chapter 750 of the
6 laws of 1990, paragraph (a) of subdivision 2-a as added and subparagraph
7 (i) of paragraph (c) of subdivision 3 as amended by chapter 416 of the
8 laws of 2000, and paragraph (a) of subdivision 7 as amended by chapter
9 160 of the laws of 2003, are amended to read as follows:

10 (iv) (A) Child day care providers who have been issued a license shall
11 openly display such license in the facility or home for which the
12 license is issued. Child day care providers who have registered with the
13 department shall provide proof of registration upon request.

14 (B) Home based child day care providers who have been issued a license
15 shall additionally openly display, in a method and format determined by
16 the office of children and family services, the number of household
17 members living in the home and update when there is any change in house-
18 hold. Child day care providers must disclose the most recently updated
19 information immediately upon request to an inspector, parent, legal
20 guardian, or relative within the third degree of consanguinity of the
21 parent of such child.

22 (a) The office of children and family services shall promulgate regu-
23 lations which establish minimum quality program requirements for
24 licensed and registered child day care homes, programs and facilities.
25 Such requirements shall include but not be limited to (i) the need for

EXPLANATION--Matter in italics (underscoring) is new; matter in brackets
[-] is old law to be omitted.

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1 age appropriate activities, materials and equipment to promote cogni-
2 tive, educational, social, cultural, physical, emotional, language and
3 recreational development of children in care in a safe, healthy and
4 caring environment (ii) principles of childhood development (iii) appro-
5 priate staff/child ratios for family day care homes, group family day
6 care homes, school age day care programs and day care centers, provided
7 however that such staff/child ratios shall not be less stringent than
8 applicable staff/child ratios as set forth in part four hundred four-
9 teen, four hundred sixteen, four hundred seventeen or four hundred eigh-
10 teen of title eighteen of the New York code of rules and regulations as
11 of January first, two thousand (iv) appropriate levels of supervision of
12 children in care (v) minimum standards for sanitation, health, infection
13 control, nutrition, buildings and equipment, safety, security proce-
14 dures, first aid, fire prevention, fire safety, evacuation plans and
15 drills, prevention of child abuse and maltreatment, staff qualifications
16 and training, record keeping, and child behavior management (vi) educa-
17 tion on overdose prevention.

18 (i) The office of children and family services shall establish a toll-
19 free statewide telephone number and electronic mail to receive inquiries
20 about child day care homes, programs and facilities and complaints of
21 violations of the requirements of this section or regulations promulgat-
22 ed under this section. The office of children and family services shall
23 develop a system for investigation, which shall include inspection, of
24 such complaints. The office of children and family services may provide
25 for such investigations through purchase of services. The office of
26 children and family services shall develop a process for publicizing
27 such toll-free telephone number and electronic mail to the public for
28 making inquiries or complaints about child day care homes, programs or
29 facilities. A child day care provider shall be required to display such
30 toll free telephone number and electronic mail alongside their license
31 in a method and format determined by the office of children and family
32 services.

33 6. Unless otherwise limited by law, a parent with legal custody or a
34 legal guardian of any child in a child day care program shall have
35 unlimited and on demand access to such child or ward. Such parent or
36 guardian unless otherwise limited by law, also shall have the right to
37 inspect on demand during its hours of operation any area of a child day
38 care center, group family day care home, school-age child care program,
39 or family day care home to which the child or ward of such parent or
40 guardian has access or which could present a hazard to the health and
41 safety of the child or ward. Such right to inspect shall be posted
42 alongside the child day care provider's license in a method and format
43 determined by the office of children and family services.

44 (a) The department shall implement on a statewide basis programs to
45 educate parents and other potential consumers of child day care programs
46 about their selection and use. The department may provide for such
47 implementation through the purchase of services. Such education shall
48 include, but not be limited to, the following topics:

- 49 (i) types of child day care programs;
50 (ii) factors to be considered in selecting and evaluating child day
51 care programs;
52 (iii) regulations of the department governing the operation of differ-
53 ent types of programs;
54 (iv) rights of parents or guardians in relation to access to children
55 and inspection of child day care programs;

(v) information concerning the availability of child day care subsidies;
(vi) information about licensing and registration requirements;
(vii) prevention of child abuse and maltreatment in child day care programs, including screening of child day care providers and employees;
(viii) tax information; ~~and~~
(ix) factors to be considered in selecting and evaluating child day care programs when a child needs administration of medications during the time enrolled~~[-]~~; ~~and~~

(x) all information required to be displayed or posted by a child day care provider.

§ 2. Section 390 of the social services law is amended by adding a new subdivision 15 to read as follows:

15. All inspections of the premises of any child day care provider pursuant to the provisions of this section shall include only a visual inspection of every room and closet in the home or facility.

§ 3. Section 390-a of the social services law is amended by adding a new subdivision 6 to read as follows:

6. (a) All providers of child day care may provide and maintain onsite opioid antagonists, as defined in section thirty-three hundred nine of the public health law, in quantities and types deemed by the commissioner of health. Such opioid antagonists shall be out of reach from children and accessible by every operator, program director, employee and assistant for use during emergencies to any individual on premises suspected of having an opioid overdose whether or not there is a previous history of opioid abuse.

(b) The office of children and family services, in consultation with the department of health and the office of addiction services and supports, shall provide child day care providers and a parent, legal guardian, or relative within the third degree of consanguinity of the parent of such child, information on how to obtain overdose prevention training and opioid antagonists. Such information shall only include free opioid antagonists at no cost through existing programs or services.

(c) Any person or entity acting reasonably and in good faith in compliance with this subdivision shall not be subject to criminal, civil or administrative liability solely by reason of such action.

§ 4. Subparagraphs (ix) and (x) of paragraph (b) of subdivision 3 of section 390-a of the social services law, subparagraph (ix) as amended and subparagraph (x) as added by chapter 675 of the laws of 2019, are amended and a new subparagraph (xi) is added to read as follows:

(ix) for operators, program directors, employees and assistants of family day care homes, group family day care homes and child day care centers, education and information on the identification, diagnosis and prevention of shaken baby syndrome; ~~and~~

(x) adverse childhood experiences (ACEs), focused on understanding trauma and on nurturing resiliency~~[-]~~; ~~and~~

(xi) overdose prevention training pursuant to a program approved under section thirty-three hundred nine of the public health law.

§ 5. This act shall take effect on the ninetieth day after it shall have become a law. Effective immediately, the addition, amendment and/or repeal of any rule or regulation necessary for the implementation of this act on its effective date are authorized to be made and completed on or before such effective date.